

2.	25CV1880	KELLY WILSON VS. TESLA, INC.
MOTION FOR TRIAL PREFERENCE		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Plaintiff, Kelly Wilson ("Plaintiff") filed a Motion for Trial Preference on June 1, 2026. Defendant, Tesla Inc., ("Defendant") filed an Opposition on July 20, 2026. Plaintiff filed a Reply on July 23, 2026.

Plaintiff filed a Complaint against Defendant on July 21, 2025, alleging causes of action for 1) Fraud & Deceit – Intentional Misrepresentation of Fact; 2) Fraud & Deceit – Concealment; 3) Fraud & Deceit – Suppression of Fact; 4) Fraud & Deceit – Negligent Misrepresentation; and 5) Breach of Contract.

Legal Principles:

Code of Civil Procedure § 36 provides, in part:

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Discussion:

Plaintiff requests the Court grant trial preference pursuant to Code of Civil Procedure § 36(a) and set the action for trial on a date not more than 120 days from the date of the order.

Plaintiff attests that he is currently 74 years old. Plaintiff has a substantial interest in the action as a whole, as all claims, damages, and interests at stake belong to Plaintiff alone. Plaintiff is under the ongoing care of Ruslan Khabatyuk, PA-C, a licensed Physician Assistant, who has treated Plaintiff since October 15, 2020. Plaintiff alleges that he has high blood pressure, tinnitus, gastrointestinal problems, psoriasis and related dermatitis, urinary problems, and stress-related teeth grinding. Plaintiff argues that he experiences persistent fatigue, disrupted sleep, and ongoing anxiety about the case. The physical and mental effort required to prepare and pursue the litigation has become more difficult for him to maintain, and the work takes him longer and costs him more than previously. Plaintiff is concerned that his ability to recall the events of 2022 accurately and to testify clearly about them will continue to diminish.

The Declaration of Ruslan Khabatyuk, PA-C (“Mr. Khabatyuk”) attests that Plaintiff has been a patient of Dignity Health Mercy Medical Group since at least April 7, 2015. Plaintiff remains under Mr. Khabatyuk’s care for hypertension, gastrointestinal distress, and for further constellation of stress-driven conditions. From October 2020 through September 2022, Plaintiff’s chronic conditions were stable. Beginning on November 3, 2022, there is documentation of stress driven symptoms across multiple organ systems with rapid escalation in the fall of 2025. In his professional opinion, he believes Plaintiff’s medical conditions are being significantly exacerbated by the acute and prolonged stress related to his ongoing legal and financial disputes and that trial preference was necessary to prevent prejudicing his interest in the litigation.

Defendant argues that Plaintiff has failed to satisfy the requirements set by Code of Civil Procedure § 36(a)(2), as Plaintiff and Plaintiff’s Physician Assistant fail to demonstrate how Plaintiff’s hypertension and other conditions are such that a trial preference is necessary. Plaintiff does not demonstrate how he would be prevented from meaningfully participating in his own case and to provide testimony.

The Court does not find that Plaintiff’s health is such that preference is necessary to prevent prejudicing his interest in the litigation. Plaintiff’s request for trial preference is denied.

TENTATIVE RULING #2:

PLAINTIFF’S REQUEST FOR TRIAL PREFERENCE IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.